

Bude-Stratton Urban District Council Act, 1960

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CHAPTER xxviii

An Act to empower the urban district council of Bude-Stratton to dispose of portions of the Bude Canal discontinued as a navigation to authorise the closing for navigation of a further portion of the said canal and for other purposes. [29th July 1960.]

WHEREAS the urban district of Bude-Stratton (hereinafter referred to as "the district") is under the management and local government of the urban district council of Bude-Stratton (hereinafter referred to as "the Council"):

And whereas by an Act passed in the fifty-ninth year of the reign of King George 3 intituled "An Act for improving the Harbour of Bude in the County of Cornwall and for making and maintaining a Navigable Canal from the said Harbour of Bude to or near the Village of Thornbury in the County of Devon and divers Branches therefrom all in the said Counties of Cornwall and Devon" (hereinafter referred to as "the Act of 1819") the Bude Harbour and Canal Company (hereinafter referred to as "the company") were incorporated and authorised to improve the harbour of Bude and to make and maintain the canal and collateral branches thereby authorised:

And whereas the company constructed the said works for the improvement of the said harbour and made the said canal (which with its collateral branches and the works and conveniences connected therewith is hereinafter referred to as "the canal") and in connection therewith in pursuance of the authority of the Act of 1819 constructed a reservoir for the purposes of the canal into which certain surplus water of the river Tamar might be diverted:

And whereas the traffic on the canal became greatly diminished and the receipts therefrom became insufficient to provide for the maintenance of the whole canal as a navigation:

And whereas by the Bude Harbour and Canal (Further Powers) Act 1891 (hereinafter referred to as "the Act of 1891") the company were accordingly authorised to close certain portions of the canal and by virtue of the Act of 1891 the said portions were closed and all rights of way or user and other rights in reference thereto became extinguished in the manner and subject to the conditions provided in the Act of 1891:

And whereas by the Act of 1891 the company were further authorised to discontinue the use as and for navigations or navigable ways of certain other parts of the canal and to maintain and appropriate the same and also the said reservoir for the purposes of the supply of water and for the same purposes to appropriate the waters which under the Act of 1819 they were authorised to take:

And whereas by the Act of 1891 the company were further authorised to enter into contracts for the supply of water to certain local authorities companies and persons:

And whereas by reason of a further diminution in the traffic on the portion of the canal retained as a navigation and in the receipts therefrom it became expedient to utilise the canal and the said reservoir and the works connected therewith or part thereof for purposes of water supply under the control of the Council:

And whereas under the Stratton and Bude Improvement Act 1901 (hereinafter referred to as "the Act of 1901") the whole undertaking of the company was acquired by the Council in the manner and upon the terms therein set forth:

And whereas the Council are under the Act of 1901 and certain subsequent enactments supplying water within limits which comprise the district and parts of the parish of Marhamchurch in the rural district of Stratton in the county of Cornwall:

And whereas the said reservoir and the portion of the canal lying between the said reservoir and the upper end of the inclined plane known as the Vealand Incline in the parish of Pancrasweek in the rural district of Holsworthy in the county of Devon and being a part of the canal four and three-quarter miles or thereabouts in length the use of which as and for navigations or navigable ways was discontinued by virtue of the Act of 1891 are used by the Council solely for the purposes of their water undertaking:

And whereas the portion of the canal lying between the upper end of the said Vealand Incline and the lower end of the inclined plane known as the Marhamchurch Incline in the parish of Marhamchurch in the said rural district of Stratton and being a further part of the canal six and one-half miles or thereabouts in length the use of which as and for navigations or navigable ways

was discontinued by virtue of the Act of 1891 has been derelict for many years and it is expedient that the Council be authorised to dispose of the said portion of the canal as provided by this Act:

And whereas the Council are under an obligation to maintain as a navigable way the remaining portion of the canal lying between the lower end of the said Marhamchurch Incline and the said harbour and being two miles or thereabouts in length:

And whereas so much of the said remaining portion of the canal as lies between the lower end of the said Marhamchurch Incline and the lock in the district known as Rodd's Bridge Lock has not been used as a navigable way for many years and it is expedient that all rights of navigation thereover be extinguished as provided by this Act:

And whereas it is expedient to relieve the Council of any obligation to open the bridge in the district known as Falcon Bridge:

And whereas it is expedient that the other provisions contained in this Act be enacted.

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 had been observed:

May it therefore please Your Majesty that it may be enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Bude-Stratton Urban District Council Act 1960. Short title.

2.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):— Interpretation.

“ the Act of 1819 ” means the Act passed in the fifty-ninth year of the reign of King George 3 intituled “ An Act for improving the Harbour of Bude in the County of Cornwall and for making and maintaining a Navigable Canal from the said Harbour of Bude to or near the Village of Thornbury in the County of Devon and divers Branches therefrom all in the said Counties of Cornwall and Devon ”;

“ the Act of 1891 ” means the Bude Harbour and Canal (Further Powers) Act 1891;

- “ the Act of 1901 ” means the Stratton and Bude Improvement Act 1901;
- “ the Act of 1933 ” means the Local Government Act 1933;
- “ the canal ” means the part of the undertaking known as the Bude Canal;
- “ the canal lands ” means all lands belonging to the Council and forming part of the undertaking situated between the lower end of the Marhamchurch Incline and the upper end of the Vealand Incline including the specified section of the canal and the reservoirs feeders towing paths lands banks weirs lay-byes wharves warehouses bridges culverts drains and other buildings works and conveniences connected with the specified section of the canal;
- “ the Council ” means the urban district council of the district;
- “ the district ” means the urban district of Bude-Stratton;
- “ the existing enactments ” means the Act of 1819 the Act of 1891 and the Act of 1901;
- “ the general rate fund ” means the general rate fund of the district;
- “ the Marhamchurch Incline ” means the inclined plane forming part of the undertaking situated in the parish of Marhamchurch in the rural district of Stratton in the county of Cornwall;
- “ the specified section of the canal ” means so much of the canal as lies between the upper end of the Marhamchurch Incline and the lower end of the Vealand Incline and includes all waterways locks basins and cuts forming part of that portion of the canal;
- “ the undertaking ” means the harbour and canal undertaking of the Council as existing at the passing of this Act;
- “ the Vealand Incline ” means the inclined plane forming part of the undertaking situated in the parish of Pancrasweek in the rural district of Holsworthy in the county of Devon.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Disposal of
canal lands.

3. Notwithstanding anything to the contrary in the existing enactments the Council may sell lease exchange or otherwise dispose of to such persons in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands forming part of the canal lands or any interest if

any such lands and may sell lease exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Council shall not without the consent of the Minister of Housing and Local Government sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent less than the current market price or rent or for a consideration of a value less than the current market value but a purchaser or lessee shall not be concerned to inquire whether the consent of the said Minister is necessary or has been obtained.

4. Nothing in section 3 (Disposal of canal lands) of this Act shall empower the Council to sell lease exchange or otherwise dispose of the aqueduct situate in the parishes of Launcells and Pancrasweek in the rural district of Holsworthy and carrying the canal over the river Tamar. As to
Burmsdon
aqueduct.

5. Subject to the provisions of this Act the Council may in relation to the canal lands or any part thereof execute and do all or any of the following matters and things:— Power to
execute
works.

- (a) They may fill up raise or lower the bed of any part of the specified section of the canal and remove alter or interfere with the reservoirs feeders towing paths lands banks weirs lay-byes wharves warehouses bridges culverts drains and other buildings works and conveniences forming part of the canal lands;
- (b) They may construct or erect and maintain upon any part of the canal lands such fences walls embankments and other structures erections and works as they may think fit for severing that part of the canal lands from any adjoining lands or from any locks and basins forming part of the canal lands or for preventing the flow or passage of water from or to any part of the specified section of the canal or to or from any such locks and basins and may remove any water from the specified section of the canal and the canal lands and make such provision as they may deem necessary or expedient (whether by the execution of works or otherwise) for preventing the flow or passage of water or any liquid or solid matter on to any lands forming part of the specified section of the canal or of the canal lands from any other lands whether forming part of the canal lands or not.

Rights of
way.

6.—(1) Notwithstanding anything in this Act the canal lands shall be subject to any public or private rights of way which may have been acquired or granted prior to the passing of this Act.

(2) Every bridge or other structure over which any such right as is referred to in subsection (1) of this section exists at the date of the passing of this Act and for the maintenance and repair of which the Council were immediately before that date liable shall at all times be properly maintained and kept in good repair by the owners for the time being of the canal lands over which such right of way exists.

(3) Nothing in this section shall preclude the substitution for any such structure as is referred to in subsection (2) of this section of a solid embankment structure or footbridge affording facilities of access across the canal lands not less than those afforded by the structure replaced thereby.

Power to
agree as to
drainage of
lands.

7. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands adjoining or contiguous to the canal lands with reference to the draining of any lands forming part of or adjacent to the canal lands or for more effectually collecting diverting and conveying the streams watercourses and waters now flowing to upon or from any part of the canal lands.

Discharge of
water into
streams.

8.—(1) For the purpose of draining any lands forming part of the canal lands the Council may cause the water in on or flowing on to such lands to be discharged into any available river stream or watercourse.

(2) For the purposes of this section the Council may provide and maintain all necessary pumps and other machinery and may lay down maintain and use sewers drains and pipes and for this purpose the Council may subject to the provisions of the Public Health Act 1936 exercise the powers of paragraph (i) of subsection (1) of section 15 of that Act:

Provided that the Council shall not use for the purposes of this section any sewer or drain belonging to a local authority except with the previous consent of the owners thereof.

(3) In the exercise of the powers conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers the amount of compensation to be settled in case of dispute by arbitration.

Agreements
with county
councils and
local
authorities.

9. The Council on the one hand and the county councils of the administrative counties of Cornwall and Devon and the rural district councils of Stratton and Holsworthy or any of them on the other hand may subject to the provisions of this Act enter into and carry into effect agreements for and with respect to the sale

to or vesting in the said councils or any of them of any part of the canal lands situate in the administrative county or district of such councils for such consideration (if any) and on such terms and conditions as may be agreed.

10.—(1) The Council as regards any bridge vested in them carrying a highway over the canal may at any time and from time to time repair renew alter widen or improve the bridge or remove the bridge and substitute a solid embankment therefor and alter the level of such highway and widen or otherwise improve any such highway and for that purpose may make up and dedicate as part of the highway so much of the canal and the lands connected therewith as they consider necessary or expedient: As to certain canal bridges.

Provided that—

- (a) the Council shall not under the powers of this section substitute a solid embankment for either of the bridges crossing the canal known as Falcon Bridge and Rodd's Bridge;
- (b) (i) in exercising the powers of this section in relation to Falcon Bridge aforesaid the Council shall maintain a headroom of not less than three feet six inches above the mean level of the water in the canal;
- (ii) for the purposes of this paragraph the mean level of the water in the canal shall be deemed to be nineteen feet above ordnance datum (Newlyn);
- (c) where under the powers of this section the Council remove a bridge and substitute a solid embankment therefor the Council shall in any case in which it is reasonably necessary to permit the flow of water under the solid embankment construct such conduits and other works as may be reasonably required;
- (d) the powers of this section shall not be exercised in relation to a bridge carrying a highway outside the district without the consent of the local authority in whom the highway carried by the bridge is for the time being vested.

(2) In this section "bridge" includes the approaches thereto.

11.—(1) In this section the expression "the waterway" means so much of the canal as lies between the northern end of the lock known as Rodd's Bridge Lock in the district and the lower end of the Marhamchurch Incline and includes all waterways locks basins and cuts forming part of that portion of the canal. Closing to navigation of portion of canal.

(2) As from the passing of this Act—

- (a) all rights of navigation along on or over the waterway and all rights of user by barges or other boats of the waterway shall cease and be extinguished; and

(b) the Council shall cease to be under any obligation (whether statutory or otherwise) to keep the waterway open for navigation or to maintain the same in a navigable condition or to preserve the supplies of water thereto for the purposes of navigation or to supply the waterway with water for those purposes;

but save as aforesaid nothing in this Act shall be deemed to prejudice or affect any existing rights powers or obligations in respect of the waterway.

Relief from
obligation to
open Falcon
Bridge.

12. Notwithstanding anything in the existing enactments the Council shall cease to be under any obligation (whether statutory or otherwise) to open the bridge forming part of the undertaking known as Falcon Bridge.

Application of
capital money.

13. Section 166 of the Act of 1933 shall apply to capital money received by the Council in respect of the sale leasing exchange or other disposition of land under section 3 (Disposal of canal lands) of this Act as it applies to capital money received in respect of a transaction under section 164 or section 165 of that Act.

Power to
borrow.

14.—(1) The Council may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority such sums as may be necessary for the payment of the costs charges and expenses of this Act;

and subject to the provisions of this section Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the preceding subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Arbitration.

15. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them).

Repeals.

16.—(1) The provisions of the existing enactments mentioned in Part I of the schedule to this Act are hereby repealed.

(2) The provisions of the existing enactments mentioned in Part II of the said schedule are hereby repealed insofar as they apply to the canal lands or any part thereof.

17. For the protection of the Cornwall River Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Council and the board apply and have effect:—

For protection
of Cornwall
River Board.

(1) In this section—

"authorised work" means—

(a) any matter or thing authorised to be executed or done under section 5 (Power to execute works) of this Act; and

(b) the repair renewal alteration widening or improvement of a bridge or substitution of a solid embankment for a bridge under section 10 (As to certain canal bridges) of this Act;

"bridge work" means the repair renewal alteration widening or improvement under the said section 10 of a bridge carrying a highway over any part of the canal which lies between the specified section of the canal and the termination of the canal at Bude Harbour or the substitution of a solid embankment for any such bridge under that section;

"protected watercourse" means any watercourse for the time being vested in or under the jurisdiction of the board for the purpose of any of its functions:

(2) (a) The Council before commencing to execute any bridge work shall submit to the board plans sections and specifications thereof for their reasonable approval:

Provided that if the board do not within twenty-eight days after the submission to them of any such plans sections and specifications signify to the Council in writing their disapproval thereof they shall be deemed to have approved thereof;

(b) A bridge work shall not be executed otherwise than in accordance with such plans sections and specifications as may be approved (or are to be deemed to be approved) by the board or as may be settled by arbitration and shall be executed to the reasonable satisfaction of the board;

(c) The Council shall at all reasonable times afford to the engineer to the board or his duly authorised representatives access to any bridge work during the execution thereof for the purpose of inspection:

(3) The Council shall not except with the consent of the board execute any authorised work in such a manner

as to damage or affect prejudicially any protected watercourse but such consent shall not be unreasonably withheld and the board may attach thereto such reasonable conditions as they think fit:

(4) Except with the consent of the board—

(a) no stream watercourse or water shall be diverted or conveyed directly or indirectly into any protected watercourse under an agreement made in pursuance of section 7 (Power to agree as to drainage of lands) of this Act; and

(b) no water shall be discharged into a protected watercourse under the powers of section 8 (Discharge of water into streams) of this Act;

but such consent shall not be unreasonably withheld and the board may attach thereto such reasonable conditions as they think fit:

(5) If by reason of the execution of any authorised work or of the failure thereof the channel or banks of any protected watercourse shall at any time be injured such injury shall be made good by the Council to the reasonable satisfaction of the board and if the Council fail so to do the board may make good the same and recover the reasonable cost thereof from the Council:

(6) The Council shall indemnify and hold harmless the board from all claims demands or expenses (not resulting from any act neglect or default of the board their servants or agents) which may be made on or against them or which they may have to pay by reason or in consequence of any injury or damage which may be caused or result to a protected watercourse by or in consequence of the execution of an authorised work or the failure thereof or in consequence of any act or omission of the Council their servants or agents whilst engaged upon the authorised work:

Provided that the board shall give to the Council reasonable notice of any such claim or demand and no settlement or compromise thereof shall be made without the agreement of the Council:

(7) The fact that any work or thing has been executed or done in accordance with a plan approved or deemed to have been approved by the board or to their satisfaction or in accordance with any directions or award of an arbitrator shall not relieve the Council from any liability under the provisions of this section:

- (8) Notwithstanding anything contained in section 11 (Closing to navigation of portion of canal) of this Act the Council shall continue to maintain and keep open in an adequate state of repair so much of the canal as lies between Whalesborough (or Hele) Weir and the termination of the canal at Bude Harbour so that the said portion of the canal continues as immediately before the passing of this Act to serve from time to time as an overspill channel for flood waters from the river Strat (or Neet):
- (9) Any difference arising between the Council and the board under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

18. Notwithstanding anything contained in this Act the following provisions for the protection of Joan Elizabeth McCall or other the owner or owners for the time being of Burmsdon Farm shall unless otherwise agreed in writing between the owners and the Council apply and have effect:—

For protection
of Joan
Elizabeth
McCall.

(1) In this section—

“ the Burmsdon Bridge ” means the bridge forming the vehicular approach to Burmsdon Farm and shown on the signed plan and thereon coloured red;

“ Burmsdon Farm ” means the farm and premises known as Burmsdon Farm situate in the parish of Launcells in the rural district of Holsworthy and shown on the signed plan and thereon coloured pink;

“ the Burmsdon section of the canal ” means the part of the canal adjoining Burmsdon Farm and shown on the signed plan and thereon coloured green;

“ the owners ” means Joan Elizabeth McCall or other the owner or owners for the time being of Burmsdon Farm;

“ the signed plan ” means the plan prepared in duplicate and signed by Frederick Charles Dredge on behalf of the Council and by the said Joan Elizabeth McCall one copy of which has been deposited with the Council and one copy retained by the owners:

- (2) Notwithstanding the sale lease exchange or disposal of any part of the canal lands but subject to the provisions of paragraph (4) of this section the Council shall at all times maintain and keep in good repair the Burmsdon Bridge and the arches drains culverts fences and gates on or connected with the Burmsdon section of the canal:

- (3) (a) If the Council fail to maintain and repair the Burmsdon Bridge the owners may serve on the Council a notice requiring the Council to execute such works of maintenance or repair as may be reasonably necessary to remedy any defects in the Burmsdon Bridge which may be specified in the notice;
- (b) If within six months from the date of the service of a notice under sub-paragraph (a) of this paragraph the Council fail to execute the works necessary to remedy the defects specified in the notice the owners may themselves execute those works and recover the reasonable costs and expenses thereof from the Council:
- (4) Nothing in this section shall preclude the substitution for the Burmsdon Bridge of a solid embankment or structure affording facilities of access for vehicles to Burmsdon Farm not less than those afforded by the Burmsdon Bridge and if the Council construct such a solid embankment or structure the provisions of paragraphs (2) and (3) of this section shall apply thereto as if it were therein referred to instead of the Burmsdon Bridge:

Provided that the Council shall not construct any such solid embankment or structure otherwise than in accordance with such plans sections and particulars as may be approved by the owners or if such approval be refused as may be settled by arbitration and such construction shall be carried out to the reasonable satisfaction of the owners:

- (5) Any difference arising between the Council and the owners under this section shall be settled by arbitration.

Saving for
town and
country
planning.

19. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

20. The costs charges and expenses preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund or out of moneys to be borrowed under this Act for that purpose.

SCHEDULE

PART I

PROVISIONS OF THE EXISTING ENACTMENTS REPEALED

Act of 1819—

Section LXV (Swivel or Draw Bridges to be shut after Vessels have passed);

Section XCVIII (Vessels of small Tonnage not to pass through Locks);

Section CV (Regulations of Vessels passing the Locks);

Section CXXI (Restricting the Quantity of Land to be taken for making the Entrance Lock).

Act of 1891—

Section 8 (Power to sell site &c. of portion of canal closed);

Section 9 (Rights of preemption to owners of adjoining lands);

Section 11 (Company to reinstate bridges roads and culverts);

Section 19 (Confirming scheduled agreement with Guardians of Stratton Union);

Section 20 (Confirming scheduled agreement with Edward Mucklow);

The First Schedule;

The Second Schedule.

Act of 1901—

Section 6 (Receipt for purchase-money);

Subsection (1) of section 7 (Transfer);

Section 8 (Pending actions);

Section 10 (Company's debts to be paid and received);

Section 12 (As to distributing the purchase-money);

Section 13 (Winding up and dissolution of Company);

Section 14 (Payment into Court);

Section 15 (Maintenance of undertaking by Company till transfer);

Section 18 (For the protection of Edward Mucklow);

So much of the First Schedule as saves from repeal any provision of the Act of 1819 or the Act of 1891 repealed by this Act;

The Second Schedule.

PART II

PROVISIONS OF THE EXISTING ENACTMENTS REPEALED IN THEIR APPLICATION TO THE CANAL LANDS

Act of 1819—

Section LXI (Drains to be made to convey Water from the Lands adjoining; and Watering Places for Cattle);

Section LXII (For fencing off Towing Paths and making Bridges &c. If Company do not fence off Towing Paths and make Bridges &c. Land Owners may do it at Company's Expence);

Section LXIII (If Bridges &c. made by the Company are insufficient Land Owners may make others at their own Expence);

Section LXVI (Works damaged by Floods to be repaired by the Company).

Table of Statutes referred to in this Act

Title or short title	Session and chapter
"An Act for improving the Harbour of Bude in the County of Cornwall and for making and maintaining a Navigable Canal from the said Harbour of Bude to or near the Village of Thornbury in the County of Devon and divers Branches therefrom all in the said Counties of Cornwall and Devon"	59 Geo. 3. c. lv.
Bude Harbour and Canal (Further Powers) Act 1891	54 & 55 Vict. c. lxxv.
Stratton and Bude Improvement Act 1901 ..	1 Edw. 7. c. cclviii.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act 1947 ..	10 & 11 Geo. 6. c. 51.

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